

Issue of
£241,926,300
out of the Con-
solidated Fund
for the service
of the year ending
31st March, 1946.

2. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and forty-six, the sum of two hundred and forty-one million, nine hundred and twenty-six thousand, three hundred pounds.

Power for
the Treasury
to borrow.

3.—(1) The Treasury may borrow from any person by the issue of Treasury Bills or otherwise, and the Bank of England and the Bank of Ireland may advance to the Treasury on the credit of the said sums, any sum or sums not exceeding in the whole two hundred and fifty million, eight hundred and fifty-seven thousand, and forty-three pounds.

40 & 41 Vict.
c. 2.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March, one thousand nine hundred and forty-six, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding three pounds per centum per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

(5) The interest on any money borrowed under this section shall be paid out of the permanent annual charge for the National Debt.

Short title.

4. This Act may be cited as the Consolidated Fund (No. 3) Act, 1945.

CHAPTER 14.

Teachers (Superannuation) Act, 1945.

ARRANGEMENT OF SECTIONS.

Section.

1. Definition of contributory service for the purposes of 15 & 16 Geo. 5. c. 59.
2. Superannuation of certain persons serving in the educational service otherwise than as teachers.
3. Provisions with respect to independent superannuation schemes.
4. Saving for superannuation rights of teachers employed by managers of public elementary schools.

Section.

5. Reckoning for pension of certain service which was not contributory or recognised service.
6. Payment of employer's contributions in respect of past service which is treated as contributory service under this Act.
7. Provisions as to grant of a second or subsequent annual allowance.
8. Right of teachers engaged in war service to require repayment of contributions.
9. Meaning of "period of war service" in 2 & 3 Geo. 6. c. 95.
10. Actuarial inquiries.
11. Miscellaneous amendments of enactments relating to superannuation of teachers.
12. Financial provisions.
13. Interpretation.
14. Short title, citation, commencement and extent.

SCHEDULES :

First Schedule.—Service before 1st April, 1945, which may be treated as if it were Contributory or Recognised Service.

Second Schedule.—Amendment of Enactments.

An Act to amend the definition of contributory service for the purposes of the Teachers (Superannuation) Act, 1925, to extend the enactments relating to the superannuation of teachers to certain persons employed in connection with the provision of educational services otherwise than as teachers, and to make other amendments of the law relating to the superannuation of teachers and such persons as aforesaid.

[28th March 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The definition of contributory service contained in section two of the Teachers (Superannuation) Act, 1925 (hereinafter referred to as "the principal Act"), shall have effect only in relation to service before the date of the commencement of this Act ; and in relation to service on or after that date the expression "contributory service" shall for the purposes of the said Act mean full-time service—

- (a) as a teacher in a school or county college maintained by a local education authority under the Education Act, 1944, being a school or college in respect of which grants are made by the Minister to the authority ;
- (b) as a teacher in any establishment maintained by a local education authority in pursuance of a scheme of further education or in pursuance of the provisions

11 & 12 Geo. 5.
c. 51.

of section forty-seven of the Education Act, 1944, or of section seventy-five of the Education Act, 1921, being an establishment in respect of which grants are made by the Minister to the authority ;

(c) as a teacher in a school in respect of which grants are made by the Minister to the proprietor thereof ;

(d) as a teacher of such kind as may be prescribed in a special school not maintained by a local education authority, in an approved school, or in a school provided by the council of a county or county borough under the provisions of section fifty-three of the Poor Law Act, 1930 ;

20 & 21 Geo. 5.
c. 17.

(e) as a teacher of such kind as may be prescribed in a certified institution as defined by section seventy-one of the Mental Deficiency Act, 1913, or as a teacher of such kind as may be prescribed employed by a local authority in the exercise of their functions under paragraph (cc) of section thirty of that Act ;

3 & 4 Geo. 5.
c. 28.

(f) as a teacher employed by a local education authority, or by any person or body of persons in respect of whose expenditure grants are made by the Minister, in any service other than such service as is hereinbefore mentioned, being service approved by the Minister for the purposes of this paragraph ;

(g) as a teacher of such kind as may be prescribed employed by a voluntary association which is in receipt of contributions in pursuance of a scheme in force under subsection (2) of section one hundred and two of the Local Government Act, 1929 ;

19 & 20 Geo. 5.
c. 17.

(h) in the case of a person whose service in any capacity was, before the first day of April, nineteen hundred and nineteen, recorded by the Board of Education under the Elementary School Teachers (Superannuation) Act, 1898, as a teacher in any capacity approved by the Minister for the purposes of this paragraph ; or

61 & 62 Vict.
c. 57.

(i) as a teacher in any school which was approved by the Treasury for the purposes of paragraph (vii) of section eighteen of the School Teachers (Superannuation) Act, 1918, during any period during which the school satisfies the conditions mentioned in that paragraph, unless the Minister, upon the application of the proprietor of the school, has determined that service in that school shall not be treated as contributory service, or the Board of Education have made a like determination in relation to the school under the powers conferred by the principal Act :

Provided that the foregoing definition shall have effect subject to provisos (a) and (b) to subsection (1) of section two of the principal Act.

(2) For the purposes of the foregoing subsection :—

- (a) a teacher shall be deemed to be employed in full-time service in any such school as is therein mentioned if the Minister is satisfied that he is employed in full-time service which is mainly and primarily service in the capacity of a teacher in such a school, and, in so far as it is not such service, is service in some other school under the same management as, and educationally connected with such a school ;
- (b) the service of any person shall be deemed to be service as a teacher if the Minister is satisfied either that the service is wholly in the capacity of a teacher or that it is mainly and primarily in the capacity of a teacher and that any other duties of the employment are educational duties connected with the duties in that capacity ; and
- (c) the service of any person shall be deemed to be service as a teacher if it is service in any capacity in which it is his principal duty to attend any establishment for providing social or physical training and either to provide or to supervise the provision of such training therein ;

and references in the principal Act to teachers shall be construed accordingly.

(3) In relation to service after the commencement of this Act section two of the principal Act shall have effect as if subsection (2) were omitted therefrom.

2.—(1) Where the Minister is satisfied with respect to service of any particular kind that it is not service as a teacher and is not service which to a substantial extent involves the control or supervision of teachers, but that it is service which to a substantial extent involves the performance of duties of an organising or advisory character in connection with the provision of education or of services ancillary to education, and that it is service in the performance of which teaching experience is of value, he may approve service of that kind for the purposes of this subsection ; and if any person is employed by a local education authority after the commencement of this Act in service of a kind so approved, his said employment after the commencement of this Act shall, if he makes application to the Minister for that purpose within the prescribed time and in the prescribed manner, be treated for the purposes of the principal Act as if it were employment as a teacher in contributory service, and references in the principal Act to teachers and to contributory service shall be construed accordingly :

*Superannua-
tion of certain
persons
serving in the
educational
service
otherwise
than as
teachers.*

Provided that the employment of a person shall not be treated as employment in contributory service by virtue of this subsection unless he has previously been employed for not less than three years, whether in England or Wales or elsewhere and whether before or after the commencement of this Act, as a teacher in a capacity approved by the Minister.

(2) Where the Minister is satisfied with respect to service of any particular kind that it is not service as a teacher but is service which to a substantial extent involves the performance of duties of an organising or advisory character in connection with the provision of education or of services ancillary to education, he may approve service of that kind for the purposes of this subsection; and if any person is employed after the commencement of this Act in service of a kind so approved, and his said employment is not employment in the service of a local education authority but is employment in the service of a person or body of persons in respect of whose expenditure grants are made by the Minister, his said employment after the commencement of this Act shall if he makes application to the Minister for that purpose within the prescribed time and in the prescribed manner be treated for the purposes of the principal Act as if it were employment as a teacher in contributory service, and references in the principal Act to teachers and to contributory service shall be construed accordingly.

2 & 3 Geo. 6.
c. 95.

(3) Where under section one of the Teachers Superannuation (War Service) Act, 1939, a period of war service is treated for the purposes of Part II of the principal Act as if it were a period of contributory service, that period of war service shall also be treated as if it were a period of service as a teacher in a capacity approved by the Minister for the purposes of this section and of section fourteen of the principal Act.

Provisions
with respect
to independent
superannua-
tion schemes.

3.—(1) Notwithstanding anything in any enactment, a person employed in contributory service shall not be subject to an independent superannuation scheme in respect of that service.

(2) Where a person who becomes employed in contributory service at or after the commencement of this Act :—

(a) has, not more than one year before he so becomes employed in contributory service, been subject to an independent superannuation scheme; and

(b) would, but for the foregoing subsection be subject to such a scheme in respect of the service in which he so becomes employed;

the service in which he so becomes employed shall not be treated as contributory service, and he shall be subject to the independent superannuation scheme accordingly:

Provided that if any person who is subject to an independent superannuation scheme by virtue of the foregoing provisions of this subsection elects within the prescribed time and in the prescribed manner to withdraw from the scheme, the said provisions shall not have effect in relation to any service in which he is employed after the election takes effect.

(3) Where any person makes such an election, the election shall take effect as from the commencement of this Act, or as from the time when he entered the service in which he is for the time being employed, whichever is the later.

(4) Where any such election is made by a person who is a contributory employee or a local Act contributor as defined by the Local Government Superannuation Act, 1937, he shall be entitled to receive out of the appropriate superannuation fund a sum equal to the aggregate amount of his contributions to that fund calculated in accordance with subsection (5) of section ten of the said Act of 1937, or, as the case may be, in accordance with the corresponding provision of the local Act scheme, together with compound interest on those contributions, calculated to the date on which he ceased to be a contributory employee or a local Act contributor, at the rate of three per cent. per annum with half-yearly rests. 1 Edw. 8 &
1 Geo. 6. c.

(5) In this section the expression " independent superannuation scheme " means :—

- (a) any superannuation scheme other than the scheme established by the principal Act (including a superannuation scheme established by or under any public general or local Act of Parliament or provisional order confirmed by Parliament) which provides for the payment of contributions to a fund by any local authority or the persons responsible for the management of any educational establishment and for the payment out of that fund, in respect of service rendered to the authority or to those persons, of benefits on disablement, retirement, attainment of any specified age or death ; and
 - (b) any system of superannuation (not being a system established by or under any public general or local Act of Parliament or provisional order confirmed by Parliament) operated jointly by a number of educational establishments for the purpose of providing such benefits as aforesaid in respect of the service of persons employed by them.
- (6) The following provisions are hereby repealed, that is to say:—
- (a) section fourteen of the School Teachers (Superannuation) Act, 1918, as it has effect for the purposes of the principal Act ; and 8 & 9 Geo. 5.
c. 55.
 - (b) paragraph 4 of Part II of the First Schedule to the Local Government Superannuation Act, 1937 :

52 & 53 Vict.
c. 63.

Saving for
superannua-
tion rights
of teachers
employed
by managers
of public
elementary
schools.

Reckoning
for pension
of certain
service which
was not
contributory
or recognised
service.

Provided that, without prejudice to the provisions of sub-section (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals), nothing in this repeal shall affect the operation of the said section fourteen in relation to any person who became entitled to make a declaration under that section before the commencement of this Act.

4. Where immediately before the commencement of this Act any person was, as a teacher employed by the managers of a public elementary school maintained but not provided by the council of a county district, a contributory employee or a local Act contributor as defined by the Local Government Superannuation Act, 1937, then, subject to the provisions of the last foregoing section, his service after the commencement of this Act in the employment of the managers or governors of the school shall, for so long as the school remains a voluntary school, be deemed for the purposes of the said Act of 1937 and of any local Act scheme as defined by that Act to be service in the employment of the local education authority by whom the school is for the time being maintained, and he shall be entitled to participate in the benefits of the appropriate superannuation fund accordingly.

5.—(1) Subject to the provisions of this section, where a person who is employed in contributory service after the commencement of this Act by a local authority or by the managers or governors of a school maintained by a local education authority under the Education Act, 1944, has been employed before the commencement of this Act in any such service as is specified in the First Schedule to this Act, his said service before the commencement of this Act shall, if he makes application to the Minister for that purpose within the prescribed time and in the prescribed manner, be treated for the purposes of the principal Act as if it had been contributory service or recognised service, as the case may be :

Provided that if, upon making such an application, he requests that his service before any date specified by him shall not be treated as if it had been contributory service or recognised service, his said service before that date shall not be so treated by virtue of this section.

(2) Where an application made by a person under this section relates, whether wholly or in part, to service after the thirty-first day of May, nineteen hundred and twenty-two, he shall be liable to pay the appropriate contributions to the Minister in respect of that service in accordance with rules made by the Minister under section seventeen of the principal Act ; and no service in which a person has been employed after the said date shall be treated as contributory service or as recognised service by virtue of this section unless the appropriate contributions are so paid in respect thereof.

(3) For the purposes of this section, the appropriate contributions are the contributions which would have been payable in respect of the service in question under paragraph (a) of subsection (1) of section nine of the principal Act, or under the School Teachers (Superannuation) Act, 1922, if that service had been contributory service or recognised service, as the case may be. 12 & 13 Geo. 5. c. 42.

(4) Where a person has ceased to be employed in service which is treated as contributory service by virtue of this section in order to undertake war service, the provisions of the Teachers Superannuation (War Service) Act, 1939, shall have effect accordingly with respect to his period of war service, including any such period which falls after the commencement of this Act.

6.—(1) Subject to the provisions of this section, where any period of service after the end of March, nineteen hundred and twenty-eight, including any period of war service, is treated as contributory service by virtue of the last foregoing section, the contributions (hereinafter referred to as "employer's contributions") which would have been payable in respect of that service under paragraph (b) of subsection (1) of section nine of the principal Act shall be paid to the Minister by the local authority by whom the person in question is employed in contributory service when he first becomes entitled to make an application under the last foregoing section. Payment of employer's contributions in respect of past service which is treated as contributory service under this Act.

For the purposes of this subsection, a person employed in contributory service by the managers or governors of a school maintained by a local education authority under the Education Act, 1944, shall be deemed to be employed by that authority.

(2) Where in accordance with the foregoing subsection any sum is paid by a local authority on account of employer's contributions in respect of a person who was, when he first became entitled to make an application under the last foregoing section, employed by the authority in their capacity as a local education authority, or employed by the managers or governors of a school maintained by the authority, the sum so paid shall, for the purposes of any regulations of the Minister relating to the payment of grants, be treated as if it were expenditure on the salary of a teacher employed by the authority.

(3) Where a person who has been a contributory employee or a local Act contributor as defined by the Local Government Superannuation Act, 1937 (hereinafter referred to as a Local Government Superannuation Act employee), becomes, not more than one year after ceasing to be a Local Government Superannuation Act employee, entitled to make an application under the last foregoing section, no employer's contributions shall be payable in respect of any service which he was, immediately before he last ceased to be a Local Government Superannuation

Act employee, entitled to reckon for superannuation purposes under the said Act of 1937 or under any local Act scheme as defined by that Act.

(4) In lieu of the employer's contributions which would have been payable in respect of any service but for the last foregoing subsection, there shall be paid to the Minister in respect of that service, out of the appropriate superannuation fund, a sum equivalent to the difference between the sum which has become or will become payable out of that fund in respect of the past contributions of the person who made the application (including any sum payable as interest upon such contributions) and the transfer value which would have been payable out of that fund under section twenty-nine of the Local Government Superannuation Act, 1937, if, after he last ceased to be entitled to participate in the benefits of the fund, the said person had forthwith become entitled to participate in the benefits of some other superannuation fund maintained under that Act or under a local Act scheme as defined by that Act :

Provided that the sum paid to the Minister by virtue of this subsection in respect of any service shall not exceed the aggregate amount of the contributions which would have been payable in respect of that service under paragraph (b) of subsection (1) of section nine of the principal Act.

(5) For the purpose of the last foregoing subsection :—

- (a) the appropriate superannuation fund is the fund in the benefits of which the person in question was last entitled to participate as a Local Government Superannuation Act employee before becoming entitled to make the application under the last foregoing section ; and
- (b) the expression " past contributions " includes in relation to a contributory employee all such contributions as are mentioned in subsection (5) of section ten of the Local Government Superannuation Act, 1937, and, in relation to a local Act contributor, shall be construed accordingly.

(6) Where a person ceased to serve in any capacity in respect of which he was a Local Government Superannuation Act employee in order to undertake service which he was entitled to reckon for superannuation purposes by virtue of the Local Government Staffs (War Service) Act, 1939, subsections (3) (4) and (5) of this section shall have effect as if he had continued to be a Local Government Superannuation Act employee during the period of service which he was so entitled to reckon.

(7) Any reference in this section to the contributions which would have been payable in respect of the service of any person under paragraph (b) of subsection (1) of section nine of the

principal Act shall, in relation to a period of war service, be construed as a reference to such contributions only as would have been payable under that paragraph in respect of his service during that period, if, at the commencement of that period, he had ceased to be employed as a teacher in contributory service in order to undertake war service.

7.—(1) Where, after a teacher has been in receipt of an annual superannuation allowance granted under the principal Act, another annual superannuation allowance is, after the commencement of this Act, granted to him in accordance with subsection (1) of section six of the principal Act, or has been so granted to him on or after the first day of September, nineteen hundred and thirty-nine, the amount of that other allowance shall not be less than the amount of any annual superannuation allowance previously granted to him under the principal Act.

Provisions as to grant of a second or subsequent annual allowance.

(2) Where the sums which have accrued before the commencement of this Act on account of an allowance granted on or after the said first day of September are less than they would have been if this section had come into operation on that day, the Minister shall pay to the teacher or to his legal personal representatives a sum equal to the deficiency.

8.—(1) Where by virtue of section one or section nine of the Teachers Superannuation (War Service) Act, 1939, a person's period of war service is treated as if it were a period of contributory service, he may at any time during that period require the Minister to repay to him a sum equal to the balance of his contributions computed as at the date of repayment.

Right of teachers engaged in war service to require repayment of contributions

(2) Where any person makes such a requirement, his period of war service after the requirement is made shall not be treated as if it were a period of contributory service by virtue of the said Act of 1939.

(3) Where the balance of any person's contributions is repaid under this section, subsection (2) of section twelve of the principal Act (which relates to the effect of the repayment of the balance of any person's contributions upon the computation of the service which he is entitled to reckon as contributory service or as recognised service) shall have effect as if a repayment had been made under that section.

(4) For the purposes of this section, the expression "contributions" includes contributions paid under the School Teachers (Superannuation) Act, 1922; and the balance of a person's contributions shall be calculated for the purposes of this section as it is calculated for the purposes of section twelve of the principal Act.

Meaning of
"period of
war service",
in 2 & 3
Geo. 6. c. 95.

9.—(1) For the purposes of the Teachers Superannuation (War Service) Act, 1939, a person's period of war service includes :—

- (a) any period during which, though not actually engaged in war service, he is as a result of war service prevented or hindered from procuring work as a teacher ; and
- (b) in the case of a person who, having been admitted or accepted for admission to a training college recognised by the Board of Education or the Minister for the purpose of payment of grant, undertakes war service before completing his course of training, any period during which, though not actually engaged in war service, he is as a result of war service prevented or hindered from entering upon or completing his course of training ;

and in that Act the expression "period of war service" shall be construed accordingly :

Provided that a person's period of war service shall not, by virtue of this subsection, be extended by a period or periods exceeding in all fifty-two weeks, or such greater number of weeks, not being more than one hundred and four, as the Minister may in any particular case allow.

(2) The provisions of the foregoing subsection shall be deemed always to have had effect, and the definition of "period of war service" contained in section eleven of the Teachers Superannuation (War Service) Act, 1939, shall be deemed never to have had effect.

Actuarial
inquiries.

10. The Treasury shall, as soon as they think practicable, and thereafter at intervals of seven years, cause an actuarial inquiry to be held for the purpose mentioned in section fifteen of the principal Act ; and the said section fifteen shall have effect, and shall be deemed always to have had effect, as if the words "and at the expiration of every subsequent period of seven years" were omitted therefrom.

Miscellaneous
amendments
of enactments
relating to
super-
annuation
of teachers.

11.—(1) The definition of recorded service contained in subsection (5) of section one of the Elementary School Teachers (Superannuation) Act, 1898, shall have effect only in relation to service before the date of the commencement of this Act ; and in relation to service on or after that date the said subsection (5) shall have effect as if for the words from the beginning of the subsection to the words "or industrial school" there were substituted the words :—

" 'Recorded service' means, for the purposes of this Act, such service in the capacity of a certificated teacher in any educational establishment in respect of which grants

are paid by the Minister as is recorded by the Minister for the purposes of this Act."

(2) The definition of certificated teacher contained in section eleven of the said Act of 1898 shall have effect only in relation to periods before the commencement of this Act; and in relation to any subsequent period the expression "certificated teacher" shall, for the purposes of the said Act, mean any person who would for the time being have been recognised as a certificated teacher under the regulations of the Minister which were in force with respect to such recognition immediately before the commencement of this Act if those regulations had remained in force thereafter.

(3) In paragraph (e) of Part II of the First Schedule to the National Health Insurance Act, 1936, (which defines excepted ^{26 Geo. 5. &} employments for the purposes of that Act) the reference to employ- ^{1 Edw. 8. c. 32.} ment as a teacher in recognised or contributory service within the meaning of the Teachers (Superannuation) Acts, 1918 to 1925, shall be construed as including a reference to the employment of any person in contributory service after the commencement of this Act, and, in the said paragraph (e), the reference to employment as a teacher in recorded service within the meaning of the Elementary School Teachers (Superannuation) Act, 1898, shall be construed as including a reference to employment after the commencement of this Act in service which is recorded service for the purposes of the said Act of 1898.

(4) In paragraph 6 of Part II of the First Schedule to the Unemployment Insurance Act, 1935 (which defines excepted ^{25 & 26 Geo. 5.} employments for the purposes of that Act) the reference to ^{c. 8.} employment as a teacher of any person who is in contributory service within the meaning of the Teachers (Superannuation) Act, 1925, shall be construed as including a reference to the employment of any person in contributory service after the commencement of this Act, and the reference in the said paragraph 6 to employment in a capacity which would be contributory service if the person concerned were under the age of sixty-five years shall be construed accordingly.

(5) In subsection (1) of section seventeen of the Local Government Superannuation Act, 1937, for the words "the Teachers (Superannuation) Acts, 1918 to 1937" there shall be substituted the words "the Teachers (Superannuation) Acts, 1918 to 1945".

(6) The enactments specified in the first column of the Second Schedule to this Act shall have effect subject to the amendments specified in the second column of that Schedule, so, however, that no such amendment shall affect any additional allowance or gratuity which has accrued before the date of the commencement of this Act, or any contribution or quarterly payment which has become payable before that date, or affect the question

whether the power or duty to grant or restore any allowance or to make any other payment has become exercisable before that date.

**Financial
provisions.**

12. Any expenses incurred by the Minister by reason of the passing of this Act, and any increase occasioned by the passing of this Act in sums which are defrayed out of moneys provided by Parliament, shall be defrayed out of moneys so provided; and any sums received by the Minister by reason of the passing of this Act, other than sums paid on account of contributions under the Elementary School Teachers (Superannuation) Act, 1898, shall be dealt with in the same manner as sums received by him under section nine of the principal Act.

Interpretation.

13.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

23 & 24 Geo. 5.
c. 12.

“Approved school” has the meaning assigned to it by section one hundred and seven of the Children and Young Persons Act, 1933, that is to say, means a school approved by the Secretary of State under section seventy-nine of that Act;

“Contributory service” and “recognised service” mean respectively service which is contributory service for the purposes of the principal Act and service which is recognised service as defined by that Act;

“Former authority” has the meaning assigned to it by the Education Act, 1944, that is to say, means any authority which was a local education authority within the meaning of any enactment repealed by that Act or any previous Act;

“Local education authority” has the meaning assigned to it by the Education Act, 1944, that is to say, means in relation to any area for which a joint education board is constituted as the local education authority under that Act, the board so constituted, and, save as aforesaid, means, in relation to a county, the council of the county, and, in relation to a county borough, the council of the county borough;

“Minister” means the Minister of Education;

“Period of war service”, in relation to any person, has the same meaning as for the purposes of the Teachers Superannuation (War Service) Act, 1939;

“Prescribed” means prescribed by rules made under section seventeen of the principal Act;

"Proprietor", in relation to any school, has the meaning assigned to it by the Education Act, 1944, that is to say, means the person or body of persons responsible for the management of the school ;

"Scheme of further education," means a scheme of further education having effect under section forty-two of the Education Act, 1944 ;

"School", where used without qualification, means an institution for providing primary or secondary education or both primary and secondary education ;

"Service", except in relation to recorded service or war service, has the meaning assigned to it by the principal Act, that is to say, means salaried employment under a contract of service with an employer of a person who at the date of the employment is over eighteen and under sixty-five years of age ;

"Teacher" includes any person who is treated as a teacher for the purposes of the principal Act ;

"War service" has the meaning assigned to it by the Teachers Superannuation (War Service) Act, 1939, that is to say, means service during the period beginning with the first day of September, nineteen hundred and thirty-nine, and ending with such date as may be declared by an Order in Council made for the purposes of section eleven of that Act, in any of the naval, military or air forces of the Crown, or any service during that period which the Minister considers may properly be treated for the purposes of that Act in the same manner as service in those forces.

(2) References in this Act to a person or body of persons in respect of whose expenditure grants are made by the Minister include references to a person or body of persons for the time being in receipt of financial assistance from a local education authority, if grant is made by the Minister to the authority in respect of that assistance.

(3) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment, including this Act.

14.—(1) This Act may be cited as the Teachers (Superannuation) Act, 1945. Short title,
citation, com-
mencement
and extent.

(2) This Act and the Teachers (Superannuation) Acts, 1918 to 1939, may be cited together as the Teachers (Superannuation) Acts, 1918 to 1945.

(3) This Act shall come into operation on the first day of April, nineteen hundred and forty-five.

(4) This Act shall not extend to Scotland or to Northern Ireland.

SCHEDULES.

Section 5.

FIRST SCHEDULE.

SERVICE BEFORE 1ST APRIL, 1945, WHICH MAY BE TREATED AS IF IT WERE CONTRIBUTORY OR RECOGNISED SERVICE. .

1. Full time service in or in connection with a public elementary school :—

- (a) as a supplementary teacher ;
- (b) as an additional teacher ;
- (c) as an additional woman teacher ;
- (d) as an additional female teacher. .

2. Full time service in the employment of a former authority (not being service which was contributory service or recognised service) in any capacity in which it was the principal duty of the person employed therein to attend any establishment for providing social or physical training and either to provide or to supervise the provision of such training therein.

3. Full time service, on or after the first day of April, nineteen hundred and twenty-six, in the employment of a former authority, being service which satisfies the following conditions :—

- (a) that it is service of the same kind as service approved by the Minister for the purposes of subsection (1) of section two of this Act ; and
- (b) that the person employed therein was, before being so employed, employed for not less than three years, whether in England or Wales or elsewhere and whether before the said first day of April or not, as a teacher in a capacity approved by the Minister.

4. Full time service as a teacher of such kind as may be prescribed employed by a local authority in the exercise of their functions under paragraph (cc) of section thirty of the Mental Deficiency Act, 1913.

SECOND SCHEDULE.

Section II.

AMENDMENT OF ENACTMENTS.

Provision to be amended.	Amendment.
The School Teachers (Superannuation) Act, 1918.	
Section five ...	After subsection (4), there shall be inserted the following subsection :— “(5) If the Minister is of opinion that it would be inequitable for a teacher's superannuation allowance to be suspended or reduced in accordance with the provisions of the last foregoing subsection, he may, to such extent as he thinks just, disregard for the purposes of that subsection any salary and emoluments received by the teacher in respect of any such employment as is therein mentioned.”
The Teachers (Superannuation) Act, 1925.	
Section three ...	In subsection (3), in paragraph (b) thereof, for the words “more than twelve months” there shall be substituted the words “at least twelve months”.
Section five ...	After subsection (1) there shall be inserted the following subsection :— “(1A) Where, in addition to a death gratuity payable in respect of any person under the foregoing subsection, any balance of contributions would be payable in respect of him under subsection (4) of section twelve of this Act, the death gratuity shall not be paid, and the balance of contributions shall be increased accordingly.”
Section six ...	In subsection (1), for the words “more than twelve months” there shall be substituted the words “at least twelve months”. After subsection (2), there shall be inserted the following subsection :— “(3) If the Minister is of opinion that it would be inequitable for a teacher's superannuation allowance to be suspended or reduced in accordance with the provisions of the last foregoing subsection, he may, to such extent as he

2ND SCH.
—cont.

Provision to be amended.
The Teachers (Super-
annuation) Act, 1925
—cont.

Amendment.

Section six—cont.

thinks just, disregard for the purposes of that subsection any salary and emoluments to which the teacher has become entitled in respect of any such employment as is therein mentioned."

Section nine ... In subsection (3), for the words "a public elementary school maintained by the local education authority" there shall be substituted the words "a school maintained by the local education authority under the Education Act, 1944".

Section ten ... After subsection (1) there shall be inserted the following subsection:—

"(1A) In relation to service on or after the first day of April, nineteen hundred and forty-five, paragraph (a) of the proviso to the foregoing subsection shall have effect as if for the reference therein to two thousand pounds per annum there were substituted a reference to three thousand pounds per annum."

After subsection (2) there shall be inserted the following subsection:—

"(3) Where for the purpose of determining the amount of an allowance or gratuity which becomes payable under this Act on or after the first day of April, nineteen hundred and forty-five, the Minister has determined that the salary of the teacher has been unreasonably increased in respect of his employment during any period to be taken into account in calculating his average salary, the Minister shall determine the amount by which each contribution paid by the teacher in respect of that period would have been reduced if his salary had not been so increased, and shall repay that amount to the teacher or to his legal personal representatives together with compound interest thereon up to the date of repayment; and for the purpose of calculating the balance of a teacher's contributions in accordance with the provisions of section twelve of this Act the amount of any such contribution as aforesaid shall be deemed to be reduced by the amount so repaid."

Provision to be amended.

Amendment.

2ND SCH.
—*cont.*

The Teachers (Super-
annuation) Act, 1925
—*cont.*

Section twelve ... In subsection (1), for the words from "one year" to the words "may prescribe" there shall be substituted the words "three months".

The Teachers (Super-
annuation) Act,
1937.

Section two ... After subsection (1), there shall be inserted the following subsection:—

"(1A) If the employment of a teacher in contributory service has been discontinued for any period not exceeding five years beginning on or after the first day of January nineteen hundred and forty-two, and the Minister is satisfied that, during that period, the teacher has been engaged in some other employment which provides experience of value to teachers, the Minister may direct that in relation to the said discontinuance paragraph (b) of the foregoing subsection shall have effect as if for the reference therein to one year there were substituted a reference to such period not exceeding five years as may be specified in the direction."

The Teachers Super-
annuation (War Ser-
vice) Act, 1939.

Section two ... In subsection (5), after the words "contributory service" there shall be inserted the words "but if, after the conclusion of his period of war service, he has spent any period (whether before the first day of April, nineteen hundred and forty-five or not) completing his course of training, that period shall be treated for the purposes of Part II of the principal Act as if it had been a period of contributory service".
